

Why Is Traditional Knowledge Different from All Other Intellectual Property?

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Traditional knowledge may be defined as understanding or skill developed and preserved by the members of an indigenous group, concerning either socially beneficial uses of natural resources (such as plants, animals, or components thereof) or cultural practices (such as rituals, narratives, poems, images, designs, clothing, fabrics, music, or dances).¹ Currently, the legal rights of indigenous groups to control or benefit from the use of such knowledge by others is sharply limited.

Scholars and activists who advocate enhancing the rights of indigenous groups have frequently argued that such knowledge is analogous to the kinds of knowledge that are eligible for protection under intellectual property laws—in particular, copyright law and patent law—and thus should enjoy comparable legal status. In this brief essay, I argue that this analytical strategy is unhelpful. Traditional knowledge differs in fundamental ways from the kinds of inventions and works of art to which we are accustomed to extend intellectual property protection. Identification of those differences leads not to the conclusion that indigenous groups should not enjoy any enhanced legal rights, but rather to the conclusion that the rights they are given need not—and should not—resemble patents or copyrights.

Three of the differences are obvious and well known: Traditional knowledge is almost always produced by groups of people, not

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1. This definition is a modified version of the one developed in Stephen R. Munzer & Kal Raustiala, *The Uneasy Case for Intellectual Property Rights in Traditional Knowledge*, 27 CARDOZO ARTS & ENT. L.J. 37, 38 (2009). Other (typically narrower) definitions better suit the analytical aspirations of other scholars. See, e.g., Justin Hughes, *Traditional Knowledge, Cultural Expression, and the Siren's Call of Property*, 49 SAN DIEGO L. REV. 1215, 1216–18 (2013). The reasons why I find this particular definition most useful are explored in William Fisher, *The Puzzle of Traditional Knowledge*, 67 DUKE L.J. 1511 (2018).

individuals; it was produced long ago, not recently; and the persons currently asserting rights to control it are not those responsible for its creation. These differences are important, but by themselves are not fatal to the analytical strategy. To be sure, they make it awkward to extend intellectual property rights to traditional knowledge—but they do not render it impossible. Adaptations of doctrines already present in copyright and patent law could be employed to bridge the three gaps. The first could be addressed with a variant of the doctrines governing joint authorship and joint invention that we use to handle collective products under the aegis of copyright and patent law. As to the second issue, although it is true that most intellectual property rights pertain to recently generated innovations and (partly as a result) are short-lived, not all are. Some trademarks, for example, are venerable—and all are potentially immortal. It is thus not unthinkable to give permanent protection to traditional knowledge. Finally, we frequently permit the heirs or assignees of copyrights and patents to assert them; allowing the descendants of the people who first developed traditional knowledge to control or benefit from that knowledge would thus not be unprecedented.

More fundamental—and more problematic for the analytical strategy—are differences in the values at stake. The extension of intellectual property protection to inventions and works of art is most often justified on one or more of three grounds: (a) protection is essential to provide inventors and authors fair rewards for their labor; (b) the temporary suppression of competition in the production of innovative products (or the provision of innovative services) provides socially beneficial incentives for innovation; and (c) the law ought to respect and shield the strong psychic bonds between inventors and artists and their creations. As Stephen Munzer, Kai Raustiala, and Justin Hughes have shown, none of these three considerations provides a convincing justification for according indigenous groups greater rights to control traditional knowledge.²

This is not to suggest that there are no convincing reasons to do so—just that those reasons are different. In other essays, I have argued that three considerations sometimes provide powerful reasons for augmenting the rights of indigenous groups: First, traditional knowledge is sometimes central to the identities of such groups, and unauthorized use of that knowledge by outsiders

2. See Munzer & Raustiala, *supra* note 1, at 63–65; Hughes, *supra* note 1, at 1243–53.

corrodes those identities. Second, indigenous groups almost always suffer from more severe economic disadvantages than other groups within the countries where they live; enhancing the ability of indigenous groups to derive income from traditional knowledge thus promotes distributive justice. Third, giving indigenous groups greater control over uses of their knowledge inhibits global cultural homogenization; all persons benefit from the resultant preservation of cultural diversity. In those same essays, I acknowledge that these considerations are opposed by two others: the importance of providing all persons autonomy in selecting the cultural traditions through which they will define themselves, and the value of “semiotic democracy”—the freedom of all persons to “participate in the shaping of their cultural environments.”³

In some situations, the three values that favor augmenting the rights of indigenous groups predominate. A good example is provided by the recent efforts of Mayan weavers in Guatemala to secure greater control over the distinctive combination of patterns, colors, and weaving techniques that have long been employed within their communities to create garments and bedding. As Christine Gant shows in a detailed study of this controversy, that cultural tradition is central to the identities of the members of the Kaqchikel Mayan indigenous group.⁴ As one of the weavers puts it, these textiles “depict the whole history of our country, our Mayan culture”⁵ The patterns that to most consumers’ eyes are merely vibrant are, to the Maya, laden with symbolic significance; each figure woven into the fabrics “represent the conservation of water, life and nature.”⁶ In settings of this sort, the communitarian argument for curbing unauthorized uses (and modifications) of traditional knowledge is powerful. That consideration is reinforced by the relative poverty of the group. Although roughly fifty percent of the population of Guatemala is Mayan, they own tiny percentages

3. See Fisher, *supra* note 1, at 1553–65; William Fisher, *Toward Global Protection for Traditional Knowledge*, CIGI PAPERS No. 198, at 11 (2018), <https://www.cigionline.org/sites/default/files/documents/Paper%20no.198.pdf> [<https://perma.cc/7A5X-UR6D>].

4. Christine Gant, *Mayan Weavers in Guatemala: Traditional Knowledge and the Case for Collective IP Rights* (2017).

5. AJ+, *Guatemalan Weavers Fight Back*, FACEBOOK (May 14, 2017, 12:30 PM), <https://www.facebook.com/ajplusenglish/videos/959026060905568/> [<https://perma.cc/HPA7-XULT>] (statement of Angelina Aspuac, Guatemalan National Weavers Movement).

6. *Id.*

of the arable land and the country's wealth.⁷ Distributive justice would thus be promoted by enabling the members of the group to derive more economic benefit from one of the few resources they continue to control: their traditional methods of making cloth.

However, not all situations involving nonpermissive uses of traditional knowledge give rise to such clear-cut arguments for strengthened legal rights. For example, I have argued elsewhere that enabling the Ewe and Ashanti groups to reassert control over uses of kente cloth by companies and consumers in developed countries would encroach excessively on the values of autonomy and semiotic democracy. The same would be true of legal reform that would empower the descendants of the members of the Bantu groups who were taken as slaves to Uruguay and Argentina to control modern uses of the tango—which grew out of traditional West African dances.⁸

Two general points lurk in these examples: In not all situations do the relevant values tilt in favor of enhanced legal protection for traditional knowledge. And, in situations where the arguments for enhancement are strong, it is far from clear that intellectual property rights would serve those values most sensitively and effectively.

One of the reasons for the mismatch is that intellectual property rights may not be the best way of providing the current members of indigenous groups a crucial benefit—namely employment. Generally speaking, efforts during the past several decades to reorganize legal rules to compensate indigenous groups with money have not worked out well—either because the anticipated revenue streams have not materialized (for example, in the context of the otherwise commendable Hoodia Trust) or because, when they have materialized, those streams have failed either to facilitate preservation of indigenous cultures or to enable group members to find satisfying jobs (for example, in the case of the Alaska Native Claims Settlement Act).⁹ Situations in which the members of indigenous groups are able to earn decent livings through the

7. See Henry Morales, *Meanwhile, Maya Descendants Face Discrimination And Poverty*, BUS. INSIDER (Dec. 19, 2012), <https://www.businessinsider.com/maya-descendants-face-discrimination-2012-12> [https://perma.cc/Y2YL-Z8JG].

8. See Fisher, *supra* note 1, at 1560–64.

9. See ROGER CHENNELLS, STRENGTHENING PARTNERSHIP BETWEEN STATES AND INDIGENOUS PEOPLES: TREATIES, AGREEMENTS AND OTHER CONSTRUCTIVE ARRANGEMENTS 3–5 (2012), <http://www.ohchr.org/Documents/Issues/IPeoples/Seminars/Treaties/RogerChennells.pdf> [https://perma.cc/L9GZUJ93].

production and distribution of products associated with their cultural traditions—exemplified by the Tibetan rug weavers now based in Nepal or the San jewelry makers in Namibia—are much more encouraging.¹⁰

Indigenous groups are surely not alone in their need for access to stable, satisfying jobs; recent work by anthropologists and economists confirm the long-standing view that meaningful work is central to happiness.¹¹ But the high levels of unemployment within most indigenous groups make this an especially important need for them. Intellectual property rights may not be the best path to addressing it.

Another problem, as Madhavi Sunder has shown, is unlike the knowledge shielded by patents and copyrights, most forms of traditional knowledge evolve.¹² The Mayan patterns gradually change; the design of Tibetan rugs shifts; the San jewelers innovate; even the composition of traditional medicines change. Fortunately, the implication of this characteristic coheres with the importance of providing the members of indigenous groups employment, rather than cash. If their jobs involve producing goods embodying traditional knowledge, they are ideally situated to determine the direction in which the tradition moves.

Another fact that further impairs the utility of intellectual property in this context is that few indigenous groups have the resources necessary to monitor uses of their cultural traditions or to enforce whatever legal rights they might enjoy. Sometimes, philanthropic individuals or organizations help the groups in these regards,¹³ but that arrangement is not sustainable in the long term.

10. See, e.g., Barbara Crossette, *Tibetan Carpets of Nepal*, N.Y. TIMES (July 4, 1993), <https://www.nytimes.com/1993/07/04/travel/tibetan-carpets-of-nepal.html> [<https://perma.cc/2E6G-KGT7>]; *Omba Arts Trust*, INT'L FOLK ART MKT., https://folkartmarket.org/artist_organization/omb-art-trust/ [<https://perma.cc/KE3N-JQCV>] (last visited Dec. 22, 2018).

11. See, e.g., Pavlina R. Tcherneva, *What Do Poor Women Want? Public Employment or Cash Transfers? Lessons from Argentina* (Levy Econ. Inst. of Bard College, Working Paper No. 705, 2012), http://www.levyinstitute.org/pubs/wp_705.pdf [<https://perma.cc/P4ZG-FESM>].

12. See Madhavi Sunder, *The Invention of Traditional Knowledge*, 70 L. & CONTEMP. PROBS. 97, 108 (2007).

13. A commendable example is provided by the lawyers who volunteer their services to assist AFEDES, the organization of Mayan weavers who are seeking enhancement of their legal rights in Guatemala. See *Indigenous Women Reclaiming Identity, Heritage, and Rights*, THOUSAND CURRENTS, <https://thousandcurrents.org/partners/afedes/> [<https://perma.cc/DL9Q-R4UU>] (last visited Dec. 22, 2018); Jennifer Lentfer, *Weaving a Narrative*, THOUSAND CURRENTS (Aug. 7, 2017), <https://thousandcurrents.org/weaving-a-narrative/> [<https://perma.cc/S582-5L4Y>]; Rick Kearns, *Mayan Weavers Seek Legal Protection of Their Designs*, INDIAN COUNTRY TODAY (Jun. 11, 2017), <https://newsmaven.io/indiancountrytoday/archive/mayan-weavers-seek-legal-protection-of-their-designs-j5xI537KQ0mwdEHkc-0tsQ/> [<https://perma.cc/5RCD-5GPX>].

The implication is that, at least for the time being, to provide effective protection for indigenous groups, a legal regime must enlist other parties in the enforcement of the rights accorded the indigenous groups. Possible candidates for this role include: the governments of developing countries; competitors of the companies that violate the groups' rights; and the defendants in lawsuits brought by such violators to enforce their own intellectual property rights. Identification and enlistment of such allies requires, at a minimum, modification of the enforcement mechanisms characteristic of intellectual property regimes.

A final factor: Like most human-rights systems, rights to traditional knowledge are unlikely to be effective in the long term unless the public at large is aware of and supports them. The checkered histories of other efforts to improve the legal positions of disadvantaged groups—lesbian, gay, and transgendered people; women who need abortions; the victims of sexual harassment—teach us that legal reform by itself is unlikely to be efficacious or durable. This does not mean, of course, that legal reform is inadvisable—or must await the evolution of public attitudes. It means, rather, that legal reform must incorporate mechanisms that augment public awareness and engagement. Extending intellectual property protection to traditional knowledge will not suffice.

Elsewhere, I have described two reform proposals that would accommodate and capitalize on the special characteristics of traditional knowledge. The first would incorporate in a multilateral treaty a set of provisions that, by increasing the risk that unauthorized use of traditional knowledge would result in forfeiture of intellectual property rights, would put pressure on private firms to accede to reasonable requests made by the governments of developing countries and by representatives of indigenous groups. The second would augment and harness public discourse concerning the morality of particular uses of traditional knowledge by creating a disclosure obligation, disconnected from intellectual property law, analogous to the labelling requirements commonly imposed on the producers of food, clothing, and drugs. Elaborations and defenses of the proposals can be found in those essays.¹⁴

14. See Fisher, *supra* note 1, at 1565–77; *Toward Global Protection*, *supra* note 3, at 13–18; MARTHA FIELD & WILLIAM W. FISHER, LEGAL REFORM IN CENTRAL AMERICA: DISPUTE RESOLUTION AND PROPERTY SYSTEMS 256–57 (2001); William Fisher, *Two Thoughts About Traditional Knowledge*, 70 L. & CONTEMP. PROBS. 131, 132–33 (2007).

The thesis of the present essay is narrower. To be both beneficial and feasible, any effort to solve the problem of traditional knowledge must take into account the features that make it different from virtually all of the kinds of knowledge with which intellectual property scholars and practitioners are familiar. Those features are: the diversity and variability of the values at stake; the importance of providing members of indigenous groups access to meaningful work; the fact that traditional knowledge is rarely stable; the inability of most indigenous groups effectively to enforce their own legal rights; and the importance of securing public support for the augmentation of their rights.

